

An Act

ENROLLED HOUSE
BILL NO. 3701

By: Caldwell (Chad) of the
House

and

Seifried of the Senate

An Act relating to higher education; requiring all academic programs be reviewed on a five-year cycle for quality and currency; directing a review of a program if classified as a low-producing program; defining low-producing program; requiring the Oklahoma State Board of Regents for Higher Education to conduct an annual review of low-producing programs for deletion, suspension, or continuation; providing exemptions for continuation of low-producing programs; providing for probationary period for certain low-producing programs; requiring programs submit a plan of improvement; directing suspended or deleted programs to complete process within one academic year; requiring review after completion of probationary period; prohibiting low-producing programs from receiving more than two exemptions in a consecutive ten-year period; providing for codification; and declaring an emergency.

SUBJECT: Higher education

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3252 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. The Oklahoma State Regents for Higher Education shall require all academic programs be reviewed by faculty on a five-year cycle to ensure quality and currency of each program's content. If a program is classified as a low-producing program, the

classification shall trigger an early review by the Oklahoma State Board of Regents for Higher Education.

B. A "low-producing program" means a program that does not meet the following minimum standards during a five-year average for the degree plan:

1. Associate in Arts or Sciences has:
 - a. less than five degrees conferred, or
 - b. less than twenty-five majors enrolled;
2. Associate in Applied Science has:
 - a. less than five degrees conferred, or
 - b. less than seventeen majors enrolled;
3. Baccalaureate has:
 - a. less than five degrees conferred, or
 - b. less than twelve majors enrolled;
4. Masters has:
 - a. less than three degrees conferred, or
 - b. less than six majors enrolled; and
5. Doctoral has:
 - a. less than two degrees conferred, or
 - b. less than four majors enrolled.

C. The State Board of Regents shall conduct an annual review of low-producing programs for each of its member colleges and universities.

D. Low-producing programs shall be reviewed by the State Board of Regents for deletion, suspension, or continuation. Programs may qualify for continuation if the programs qualify under one of the following exceptions:

1. No cost - The program has no cost to the university;

2. Shared cost - The program shares costs and resources with other non-low-producing programs or receives support from external, non-state funding sources;

3. Restructured programs - The program was recently reinstated after suspension for significant curriculum modifications aimed at enhancing productivity;

4. Collaborative programs - The program is currently offered in collaboration with other institutions or the institution intends to pursue collaborative opportunities; or

5. Grow the program - The program has an established or developing strategic plan specifically designed to achieve minimum productivity standards.

E. Programs identified as low-producing and granted an exemption to continue shall be placed on probationary status for three (3) years. Programs placed on probationary status shall submit a plan of improvement to the State Board of Regents for approval. Failure to meet or demonstrate progress towards minimum productivity standards as noted in the plan of improvement within the three-year period shall lead to action by the State Board of Regents to delete or suspend the program. Programs selected for suspension shall complete the process within one (1) academic year. Programs selected for deletion have one (1) academic year to develop a teach-out plan and submit the required documentation.

F. Upon completion of the probationary period, programs shall be reviewed by the State Board of Regents the year following the conclusion of the probationary period.

G. Any program that is classified as a low-producing program shall receive no more than two exemptions from paragraphs 2 through 5 of subsection D of this section in a consecutive ten-year period and shall be scheduled for deletion upon being classified an additional time as a low-producing program within the ten-year period.

SECTION 2. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby

declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 10th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
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By: _____